

25NWLC74639 25NWLC74639

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25NWLC74639: WELLS FARGO BANK, N.A. vs REUBEN GUNAWAN

Tentative Ruling #1 - Motion to Compel Further Response to Requests for Admission

The Court has read and considered Defendant Reuben Gunawan's ("Defendant") Motion for Compel Further Responses to Requests for Admission, Set One ("Motion to Compel"), including the separately filed Memorandum of Points and Authorities (147 pages), Request for Judicial Notice (27 pages), Separate Statement (78 pages), supporting declaration (2 pages), supplemental declaration (77 pages) and all other supporting papers filed in support of Defendant's Motion on April 24, 2026 and thereafter.

The Court has also read and considered Plaintiff Wells Fargo Bank, N.A.'s Opposition to Defendant's Motion to Compel and the supporting declaration filed on July 21, 2026.

The Court has also read and considered Defendant's reply papers filed on or about July 27, 2026.

The Court finds Defendant's meet-and-confer efforts were neither reasonable nor undertaken in good faith to informally resolve the issues raised by the Motion to Compel. Nonetheless, the Court addresses the Motion to Compel on its merits.

The Court further finds Plaintiff made significant efforts to communicate with Defendant throughout the discovery process to avoid an unnecessary motion to compel further responses to requests for admission. Despite Plaintiff's efforts to resolve outstanding discovery issues—including Plaintiff's earlier agreement to respond to discovery that Defendant had withdrawn, which included numerous requests for admission that could be considered overbroad, compound, vague, and ambiguous—Defendant filed the present Motion to Compel.

LAW

The discovery methods available in limited civil cases (Code of Civil Procedure ("CCP") § 94) include the same methods available under the Civil Discovery Act (CCP §§ 2016.010–2036.050) in unlimited civil cases, but on a more restricted basis. In limited civil cases, the aggregate number of interrogatories, requests for admission, and inspection demands allowed to each adverse party may not exceed 35 (with no subparts for interrogatories or requests for admission). CCP § 94(a).

Parties in limited civil cases also have the same right to file motions to compel. If a propounding party believes responses to requests for admission ("RFAs") are deficient or that objections are not well taken, the party may move to compel further

responses under CCP § 2033.290. *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 776. A motion to compel further responses must be made within 45 days of service of the responses if the propounding party contends that an answer is “vague and ambiguous” or that an objection is “without merit or too general.” CCP § 2033.290. The Court is required to impose sanctions on the unsuccessful party unless it finds the party subject to sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust. CCP § 2033.290(d).

Defendant’s Motion to Compel does not acknowledge that Plaintiff provided substantive and definite responses (admit or deny) to 31 of Defendant’s 35 RFAs. Plaintiff did not provide a definitive response (admit or deny) only as to RFA Nos. 8, 14, 31, and 32. However, as to those four RFAs, Plaintiff’s Opposition sufficiently explains why a definitive response was not provided and demonstrates that the RFAs were subject to objection.

The Court also notes that many of Defendant’s RFAs are vague and ambiguous, compound, and contain numerous grammatical errors that make them difficult to follow. Nonetheless, Plaintiff provided sufficient responses to all of Defendant’s RFAs.

Accordingly, Defendant’s Motion to Compel is DENIED.

The Court declines to award monetary sanctions to Plaintiff has declined to request sanctions and because the circumstances of this case, at this time, “make the imposition of sanctions unjust.”

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Tentative Ruling #2 - Motion For Terminating Sanctions

The Court has read and considered Defendant Reuben Gunawan’s (“Defendant”) Motion for Terminating Sanctions (169 pages) filed on April 29, 2026. The Court has also read and considered Plaintiff Wells Fargo Bank, N.A.’s Opposition to Defendant’s Motion For Terminating Sanctions and supporting declaration filed on July 28, 2026. The Court has further read and considered Defendant’s objection to Plaintiff’s Opposition filed on or about July 30, 2026.

Summary of Defendant’s Motion and Argument

Defendant moves for terminating sanctions pursuant to Code of Civil Procedure (CCP) §§ 2023.010 and 2023.030, contending that Plaintiff and its counsel have subverted the discovery process to mislead the Court and to exploit Defendant’s pro se status. The Court finds Defendant’s motion to be without merit.

Legal Standard

“Misuses of the discovery process include, but are not limited to, the following:

(a) Persisting, over objection and without substantial justification, in an attempt to obtain information or materials that are outside the scope of permissible discovery.

(b) Using a discovery method in a manner that does not comply with its specified procedures.

(c) Employing a discovery method in a manner or to an extent that causes unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.

- (d) Failing to respond or to submit to an authorized method of discovery.
- (e) Making, without substantial justification, an unmeritorious objection to discovery.
- (f) Making an evasive response to discovery.
- (g) Disobeying a court order to provide discovery.
- (h) Making or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery.
- (i) Failing to confer or to attempt to confer, in person, by telephone, or by videoconference with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, if the section governing a particular discovery motion requires the filing of a declaration stating facts showing that an attempt at informal resolution has been made." CCP § 2023.010.

Application to the Facts

The Court has reviewed the conduct of Plaintiff, including the conduct as alleged by Defendant, and concludes that Defendant has not identified conduct by Plaintiff that constitutes a misuse of the discovery process within the meaning of section 2023.010.

Additionally, the record does not establish grounds under CCP § 2023.030 to impose discovery sanctions of any kind on Plaintiff, and there is certainly no basis for terminating sanctions.

The Court further finds that Plaintiff has complied with the applicable discovery rules and has not abused the discovery process. As noted by Plaintiff, the Court is becoming concerned that Defendant, by contrast, is misusing discovery in a manner that unnecessarily complicates and prolongs this limited civil collections case.

Accordingly, Defendant's Motion for Terminating Sanctions is DENIED.

Clerk to give notice.